

LOUISIANA STATE BOARD OF DENTISTRY



THE BULLETIN

VOL. 23 WINTER 2004

PUBLISHED TO PROMOTE VOLUNTARY COMPLIANCE WITH THE DENTAL PRACTICE ACT

MESSAGE FROM THE PRESIDENT

It has been an honor and a privilege to serve as president of the Louisiana State Board of Dentistry this year. The past twelve months have been rather eventful. I am pleased to report to you that we have survived a major turnover in the composition of our membership. We have had six new members this year, including three individuals appointed by Governor Foster who were not approved by Governor Blanco. Despite this unusual turnover, the administration of three licensing examinations went off without a hitch.

The primary reason for the smooth transition and continuity is the excellent professional staff employed by the Board. They are a dedicated group of individuals. Barry Ogden, our executive director, is to be commended for his efficiency and attention to detail. He is also active on the national level and has served on panels of experts at meetings of the American Association of Dental Examiners.

Barry is assisted by Linda Foto, our Director of Licensing who very capably oversees licensure applications and renewals among other responsibilities; Erin Conner, Caroline Perez and John Roth keep the office operating on an even keel; our investigator, Camp Morrison and his staff handle inspections and investigation of complaints; and finally, our attorney, Brian Begue, advises us on the legal ramifications of our actions and litigates disciplinary hearings. To these fine people, I extend my thanks and appreciation for their efforts.

I would also like to acknowledge the administration of LSU Dental School. Dean Eric Hovland, Dr. Gary McDonald and their staff have accommodated us in our efforts to provide a fair and valid examination.

We could not do this without their cooperation.

Our major legislative effort this year involved proposed legislation to regulate adult enteral conscious sedation. I am pleased to report that the L.D.A. task force on adult enteral sedation has succeeded in resolving the concerns of a diverse group of individuals. Legislation will be proposed which addresses the concerns of the L.D.A. while protecting the safety of the citizens of Louisiana. Congratulations to Dr. Chip Simon for putting together this task force and all the committee members from throughout the state who put forth the time and effort to produce a regulation that respects the intelligence of the individual dentist while promoting the health and welfare of our patients. Cooperation between the L.D.A. and the Board is essential for the best interests of all parties.

I would like to acknowledge the hard work put in by board members. These hardworking individuals sacrifice time away from their families and offices to carry out their work. They receive \$150.00 per day for board meetings and are not compensated for many hours of their time spent

reviewing complaints and researching issues being considered. They don't accept this position for the money. They do this for the love of their profession. Take a moment to thank them for their sacrifices.

Finally, I would like to thank my wife and employees for their support and tolerance of time spent on activities and concerns of the state board.

Looking to the future, I urge you to keep abreast of regulatory concerns. There is a movement to require evaluation of continuing competency of all practicing dentists. In other words, you would not only be evaluated for initial licensure, but periodic assessments of your competency would be required to maintain your license. We will keep you posted on issues as they develop.

On behalf of all of our members, I want to wish you and yours a happy holiday season and a successful new year.

Sincerely,

Charles T. McCabe, D.M.D.
President, Louisiana State Board of
Dentistry

DENTISTS HELPING DENTISTS

The Louisiana Dental Association Dentists'
Well Being Advisory Committee Help Line:

For information, assistance, or referral please call:

(225) 926-1986 (8:00 a.m. to 5:00 p.m.)

Toll Free 1-800-388-6642

(504) 650-0319

(504) 394-7702 after hours after hours

DISCIPLINARY ACTIONS

The following represents summaries of disciplinary actions taken in 2003-2004 by the Louisiana State Board of Dentistry or judgments rendered by the court in connection with civil and/or criminal proceedings and/or appellate proceedings involving registrants of this board. In the event further judicial appeals are taken in any of these matters, they will be reviewed in the next issue of *The Bulletin*.

1. **David L. Bell, D.D.S.**

Violation- Failure to notify board of change of address in violation of Rule 304 thereby forming a violation of R.S. 37:776(A)(24).

Final disposition- Dr. Bell entered into a consent decree wherein he paid a fine in the amount of \$500.00 and reimbursed the board's costs.

2. **Peter J. Bennett, D.D.S.**

Violation- Failure to acquire requisite continuing education in violation of Rule 1611 thereby forming a violation of R.S. 37:776(A)(24).

Final disposition- Dr. Bennett entered into a consent decree wherein he paid a fine in the amount of \$500.00 and completed the requisite continuing education.

3. **Kelly W. Braswell, D.D.S.**

Violation- Allegations that he prescribed, dispensed, or administered habit-forming or other legally controlled substances in other than a legal or a legitimate manner in violation of R.S. 37:776(A)(6).

Final Disposition- Dr. Braswell entered into a consent decree wherein he paid a fine in the amount of \$5000.00 and reimbursed the board's costs; surrendered all controlled substance writing privileges; began a period of probation of five years; submits to random, unannounced drug screens during the period of probation.

4. **Daryl S. Byrd, D.D.S.**

Violation- Allegations of professional or dental incompetence in violation of R.S. 37:776 (A)(7); a dental practice which fails to satisfy the prevailing acceptable standards of dental practice in this state in violation of R.S. 37:776 (A)(8); and making or submitting false or deceptive claims to a patient for the purpose of obtaining monetary compensation for services rendered in violation of R.S. 37:776(A)(21).

Final disposition- Dr. Byrd entered into a consent decree wherein he paid a fine in the amount of \$7500.00 and reimbursed the board's costs. He underwent evaluation and remediation at Louisiana State University School of Dentistry. Dr. Byrd's license was suspended for six months with said suspension

suspended pending satisfactory completion of a period of probation for three years.

5. **Rita B. Christian, R.D.H.**

Violation- Failure to acquire the requisite continuing education in violation of Rule 1613 thereby forming a violation of R.S. 37:777 (A)(25).

Final disposition- Ms. Christian entered into a consent decree wherein she paid a fine in the amount of \$500.00 and completed the requisite continuing education.

6. **John P. Cottingham, D.D.S.**

Violation- Failure to acquire the required continuing education in violation of Rule 1611, thereby forming a violation of R.S. 37:776(A)(24).

Final Disposition- Dr. Cottingham entered into a consent decree wherein he paid a fine in the amount of \$1000.00 and completed the requisite continuing education.

7. **Russell S. Crapanzano, D.D.S.**

Violation- Failure to notify the board of his cessation of dental practice at a location in violation of Rule 304, thereby forming a violation of R.S. 37:776 (A)(24).

Final disposition- Dr. Crapanzano entered into a consent decree and paid a fine in the amount of \$500.00.

8. **John M. Gilmer, D.D.S.**

Violation- Allegations that his treatment of a patient may have been below the prevailing acceptable standards in this state in violation of R.S. 37:776 (A)(8).

Final disposition- Dr. Gilmer entered into a consent decree wherein he paid a fine in the amount of \$1000.00, reimbursed the board's costs, and made restitution to a patient.

9. **Willie E. Harkless, D.D.S.**

Violation- Failure to notify the board of an office change of address in violation of Rule 304, thereby forming a violation of R.S. 37:776 (A)(24).

Final disposition- Dr. Harkless entered into a consent decree wherein he paid a fine in the amount of \$500.00 and reimbursed the board's costs as well as successfully completing the examination in Jurisprudence and Ethics.

10. **John David Harrison, D.D.S.**

Violation- Allegations that he abandoned patients in violation of R.S. 37:776 (A)(7) regarding professional or dental incompetence; R.S. 37:776 (A)(8) in that he conducted a dental practice which failed to satisfy the prevailing acceptable standards of dental practice in this state; R.S. 37:776 (A)(6) in that he prescribed, dispensed, or administered habit-forming or other legally controlled substances in other than a legal or legitimate manner; and that he took pre-payment for services not rendered in violation of R.S. 37:776 (A)(16), conduct intended to deceive and defraud the public.

Final Disposition- Dr. Harrison entered into a consent decree wherein he surrendered his license to practice dentistry in the state of Louisiana.

11. **Houston D. Hughes, D.D.S.**

Violation- Allegations that he engaged in a dental practice which fell below the acceptable standard of care in this state in violation of R.S. 37:776 (A)(8); and that he engaged in false or deceptive billing in violation of R.S. 37:776 (A)(21).

Final disposition- Dr. Hughes entered into a consent decree wherein he paid a fine in the amount of \$1000.00 and reimbursed the board's costs; began a period of probation for three years. (Note—At publication, Dr. Hughes is seeking a reconsideration of the sanctions rendered within this consent decree.)

12. **Leonard Lewis, III, D.D.S.**

Violation- Allegations that his treatment of a patient may have been below the prevailing acceptable standards in this state in violation of R.S. 37:776 (A)(8); and that he failed to maintain proper care, custody, and control of patient records in violation of Rule 318, thereby forming a violation of R.S. 37:776 (A)(24) and R.S. 40:1299.96.

Final disposition- Dr. Lewis entered into a consent decree wherein he paid a fine in the amount of \$500.00 and reimbursed the board's costs as well as providing restitution to the patient.

13. **Ambrose M. Martin, D.D.S.**

Violation- Allegations that his treatment of a patient failed to satisfy the prevailing acceptable standards of

(continued on page 3)

DISCIPLINARY ACTIONS

(continued)

dental practice in this state in violation of R.S. 37:776 (A)(8).

Final disposition- Dr. Martin entered into a consent decree wherein he paid a fine in the amount of \$2500.00 and reimbursed the board's costs; his probation was extended until November 30, 2006; and underwent evaluation and remediation at Louisiana State University School of Dentistry.

14. James R. McCormick, D.D.S.

No violation

The original consent decree entered into by Dr. McCormick was amended to delete the requirement of his undergoing drug screening.

15. Deborah A. McMartin, R.A.N.

Violation- Failure to acquire the requisite continuing education in violation of Rule 1613 thereby forming a violation of R. S. 37:777 (A) (18).

Final Disposition- A formal hearing was conducted on December 5, 2003 wherein Ms. McMartin's license to practice dental hygiene in Louisiana was revoked, assessed a fine of \$2,500.00 and ordered to reimburse the board's costs.

16. Jeffrey H. Scruggs, D.D.S.

Violation- Habitual indulgence in the use of drugs, narcotics, and intoxicating liquors in violation of R.S. 37:776 (A)(5); and prescribing or dispensing habit-forming or other legally controlled substances in other than a legal or legitimate manner in violation of R.S. 37:776 (A)(6).

Final Disposition- Dr. Scruggs reimbursed the board's costs; surrendered all controlled substance prescribing privileges; entered the Louisiana State Board of Dentistry monitoring program; and commenced a period of probation for five years.

17. William J. Wentz, D.M.D.

Violation- Unprofessional conduct as defined in R.S. 37:793, 37:775 (12) and 37:776 (A)(15); violations of Rules 1505, 1507, 1509, and 1511, thereby forming violations of R.S. 37:776 (A)(24) and R.S. 37:793 (B)(2) and (3).

Final disposition- Dr. Wentz entered into a consent decree wherein he paid a fine in the amount of \$5000.00 and reimbursed the board's costs. Dr. Wentz's license to practice dentistry was suspended for six months with imposition of said suspension deferred pending his successful completion of a five year period of probation.

ADVERTISING VIOLATIONS

1. John Barksdale, D.D.S.

Violation- Advertisement in violation of Rule 301 (E)(4) thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Barksdale entered into a consent decree wherein he paid a fine in the amount of \$500.00.

2. Frederick L. Berrier, Jr., D.D.S.

Violation- Advertisement in violation of Rule 301(F)(3) thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Berrier entered into a consent decree wherein he paid a fine in the amount of \$1000.00.

3. Frederick P. Beringer, Jr., D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3) and (K) thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Beringer entered into a consent decree wherein he paid a fine in the amount of \$1000.00.

4. John M. Berryman, D.D.S.

Violation- Two advertisements in violation of Rule 301 (H)(3) and (4) thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Berryman entered into a consent decree and paid a fine in the amount of \$1000.00.

5. William P. Bolton, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3) thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Bolton entered into a consent decree wherein he paid a fine in the amount of \$500.00.

6. Natalie B. Brasseaux, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Brasseaux entered into a consent decree and paid a fine in the amount of \$500.00.

7. Darrell P. Bourg, D.D.S.

Violation- Advertisement in violation of Rule 301 (H), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Bourg entered into a consent decree wherein he paid a fine in the amount of \$500.00.

8. Andre H. Bruni, D.D.S.

Violation- Advertisement which did not include his name in violation of R.S. 37:774.
Final Disposition- Dr. Bruni entered into a consent decree and paid a fine in the amount of \$500.00.

9. Richard H. Campbell, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3) thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Campbell entered into a consent decree wherein he paid a fine in the amount of \$500.00.

10. Rbett Cates, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Cates entered into a consent decree wherein he paid a fine in the amount of \$500.00.

11. Thomas E. Foster, D.D.S.

Violation- Two advertisements in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Foster entered into a consent decree wherein he paid a fine in the amount of \$1000.00.

12. Carol J. Galliano, II, D.D.S.

Violation- Advertisement in violation of Rule 301(F)(3), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Galliano entered into a consent decree wherein he paid a fine in the amount of \$500.00.

13. William L. Hall, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Hall entered into a consent decree wherein he paid a fine in the amount of \$500.00.

14. Edward J. Hanne, D.D.S.

Violation- Advertisement in violation of Rule 301 (K), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Hanne entered into a consent decree and paid a fine in the amount of \$500.00.

15. Ronald J. Hebert, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(4), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Hebert entered into a consent decree and paid a fine in the amount of \$500.00.

16. John David Harrison, D.D.S.

Violation- Advertisement in violation of Rule 301 (B), thereby forming a violation of R.S. 37:776 (A)(24) and R.S. 37:775 (9).
Final disposition- Dr. Harrison entered into a consent decree wherein he paid a fine in the amount of \$500.00.

17. Michael K. Hoffritz, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).
Final Disposition- Dr. Hoffritz entered into a consent decree wherein he paid a fine in the amount of \$500.00.

18. Joseph M. Kochansky, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(1), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Kochansky entered into a consent decree wherein he paid a fine in the amount of \$500.00.

19. Chad A. Lacour, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Lacour entered into a consent decree wherein he paid a fine in the amount of \$500.00.

20. John T. Mahoney, D.D.S.

Violation- Advertisement in violation of Rule 301 (E) and (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Mahoney entered into a consent decree wherein he paid a fine in the amount of \$1500.00.

21. William Michael Malone, D.D.S.

Violation- A sign in front of his office in violation of Rule 301 (H) and (K) thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Malone entered into a consent decree wherein he paid a fine in the amount of \$1000.00 and corrected the sign in front of his office.

22. William Michael Malone, D.D.S.

Violation- Advertisement in violation of Rule 301(F)(3), thereby forming three violations of R.S. 37:776 (A)(24).
Final disposition- Dr. Malone entered into a consent decree wherein he paid a fine in the amount of \$1500.00.

23. Gregg A. May, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. May entered into a consent decree wherein he paid a fine in the amount of \$500.00.

24. Thomas D. McMichael, D.D.S.

Violation- Advertisement in violation of Rule 301(F)(3) thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. McMichael entered into a consent decree wherein he paid a fine in the amount of \$500.00.

25. William E. Morgan, D.D.S.

Violation- Two advertisements in violation of Rule 301 (H), thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Morgan entered into a consent decree wherein he paid a fine in the amount of \$1000.00.

26. Bobbie N. Morris, D.D.S.

Violation- Advertisement in violation of Rule 301 (E) thereby forming a violation of R.S. 37:776 (A)(24).
Final disposition- Dr. Morris entered into a consent decree wherein she paid a fine in the amount of \$500.00.

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NECROLOGY 2003 - 2004

Dr. John W. Bateman	no date available	Dr. Charles S. Bates	no date available
Dr. Richard E. Bradford	July 11, 2003	Dr. Huey P. Dayries	no date available
Dr. Peyton S. Neuwirth	March 19, 2004	Dr. Jean B. Jeffus, Jr.	April 25, 2004
Dr. Revill J. Matthews	September 4, 2004	Dr. Ronald C. Villars	May 3, 2004
		Dr. John "Jack" Hickham	September 25, 2004

DENTAL LICENSES LAPSED FOR NON-RENEWAL IN 2004

ACTION TAKEN MAY 22, 2004

Dr. Lorelle Baddley	4935	Dr. Jared R. Fortman	5376
Dr. Robert B. Banister	4238	Dr. David E. Galatas	5182
Dr. Harry D. Berger	3808	Dr. Humberto Guerra	1776
Dr. Cosimo Brocato	1899	Dr. James Guyton	4964
Dr. Marx R. Budden	345	Dr. Marlon A. Henderson	5223
Dr. Constance M. Comeaux	4710	Dr. Joseph H. Hidalgo	3971
Dr. Richard Creaghe	4243	Dr. Matthew W. Horne	5113
Dr. Robert J. Deboisblanc	1984	Dr. Dionne B. Johnson	4790
Dr. Arthur J. Ferrario	3767	Dr. Larry T. Jones	2406
Dr. William D. Findlay	2709	Dr. David Lieux	5415
Dr. Michael W. Fink	1912		

DENTAL HYGIENE LICENSES LAPSED FOR NON-RENEWAL IN 2004

ACTION TAKEN MAY 22, 2004

Kay B. Aaron, R.D.H.	1149	Cynthia M. Devereux, R.D.H.	1960	Stephanie Griffin, R.D.H.	3538
Tonya M. Allen, R.D.H.	2574	Misty Ditcharo, R.D.H.	3254	Rena Beth Haas-Shuchat, R.D.H.	3227
Rhonda A. Anderson, R.D.H.	3402	Melissa Farmer, R.D.H.	2151	Patricia J. Helmer, R.D.H.	2114
Colleen Azzarone, R.D.H.	3223	Ramona S. Fitzgerald, R.D.H.	2185	Beverly M. Hooper, R.D.H.	2768
Robyn E. Barker, R.D.H.	1937	Laurie S. Foote, R.D.H.	3013	Angela S. Houghton, R.D.H.	2182
Joan L. Batinich, R.D.H.	348	Beverly Fowler, R.D.H.	3007	Zandra J. Jacobs, R.D.H.	1373
Paula M. Cascio, R.D.H.	389	Pixie Garcia, R.D.H.	3311	Amy K.L. Johnson, R.D.H.	3096
Susan J. Champagne, R.D.H.	2148	Susan W. Gatewood, R.D.H.	1991	Cynthia G. Jordan, R.D.H.	455
Gena G. Cooper, R.D.H.	3246	Kimberly L. Gentry, R.D.H.	3136	Jennifer R. Klause, R.D.H.	3015
Janet Corpening, R.D.H.	3491	Sharon S. Gibson, R.D.H.	2747	Shannon Latvala, R.D.H.	3306
Natalie Cox, R.D.H.	3069	Fonda C. Gordy, R.D.H.	2653	Janet P. Law, R.D.H.	3353

DENTAL LICENSES VOLUNTARILY SURRENDERED IN 2004 DUE TO RETIREMENT

Dr. Alcest L. Babin	1552	Dr. John S. Harrington	3692
Dr. David Bennett	5157	Dr. Laura D. Hastings	3820
Dr. John Breckinridge	2043	Dr. Ben G. Hinton	1784
Dr. Monica Calderon	5457	Dr. Clay C. Hunley	1451
Dr. Joseph W. Cush	1194	Dr. Jo Lea Levy	3506
Dr. Theodore Edwards	2023	Dr. Sidney S. Light	189
Dr. Archie Evans	1566	Dr. James M. Linn, Jr.	1583
Dr. Louis Fox	182	Dr. Richard L. Reinhardt	2864
Dr. Todd A. Gathright	5023	Dr. Joseph P. Tedesco	284
Dr. Louis P. Gilberti	1505		

DENTAL HYGIENE LICENSES VOLUNTARILY SURRENDERED IN 2004 DUE TO RETIREMENT

Dona S. Anders, R.D.H.	70	Kathleen B. Cekic, R.D.H.	1829
Sandra T. Assaf, R.D.H.	1182	Ashley Laborde-Clark, R.D.H.	3442
Cheryl D. Benton, R.D.H.	1587	Dolores Garrard, R.D.H.	59
Cathy R. Blaum, R.D.H.	1224	Antoinette Hinkley, R.D.H.	200
Debra Burt-Hanson, R.D.H.	2737	La Donna S. Jackson, R.D.H.	2965
Kimberly Caldwell, R.D.H.	2651	Phyllis M. Keaty, R.D.H.	328
Renee B. Cantrell, R.D.H.	207		

From the Desk of THE EXECUTIVE DIRECTOR:



During the past year the board has processed over two hundred complaints from the public, a dramatic increase over previous years. I wish I could explain why we have had this increase, but there is no simple answer. Most complaints are not acted upon because they are often simply private civil matters between the patient and the dentist which do not involve violations of the Dental Practice Act. Some complaints are simply from patients wishing to avoid paying their bills. Others reflect a dissatisfaction with the dentist's treatment or behavior. The best advice I can give you is to fully communicate all fees and services with the patient before commencing your treatment plan. This can be difficult when further problems are discovered after treatment has begun. Nevertheless, keep your patients advised at all times as to what your services will cost. The board does not regulate fees and probably never will, but it must investigate complaints.

If you have already reviewed the disciplinary actions in this newsletter, you will see that the great majority of sanctions rendered this year were for advertising violations which are not viewed as affecting one's ability or fitness to practice. In fact, most advertising violations are the result of not reading the Dental Practice Act before placing advertisements, or allowing office personnel to place the advertisements. Please remember the dentist is always responsible for any and all dental services advertising, no matter who places the advertisement; and advertising includes all communications with the public which includes stationery, business cards and signage, as well as yellow pages, television, and radio advertisements.

Rule 301 is the heart of the advertising regulation and should be read by all before placing any such advertisements. Last year, the board successfully defended its advertising regulations regarding Rules 301 (H) and (K). Those rules relate to placing the phrase "Family Dentistry" or "General Dentistry" in letters larger and/or bolder and noticeably more prominent than any other services advertised and appendages after one's name. The lawsuit, entitled Adrian Mike Simm, D.D.S. v. Louisiana State Board of Dentistry, fell in line with other appellate court rulings which show that dental boards have the right to regulate commercial free speech so as to prevent any misrepresentations to the public. The board conducted several polls which proved that these two regulations go a long way in informing the public as to the true credentials of the dentist.

After this case was final, the board conducted a review of yellow pages throughout the state and found numerous violations of these rules. No doubt many were inadvertent, but you should be aware of them in order to avoid any problems.

Another area of confusion revolves around anesthesia permits. The board now requires a dentist to have a permit to administer pediatric oral sedation and is working with the Louisiana Dental Association task force regarding enteral conscious sedation. It is the opinion of the board that with recent developments in this modality, all dentists administering oral sedation should have appropriate training and utilize the proper equipment and techniques in their offices when doing so. We hope you see the importance of this regulation.

For your information, anesthesia permits have a ranking. Those ranks are 1. general or deep sedation; 2. parenteral sedation/IV sedation; 3. pediatric oral sedation; 4. adult oral sedation; 5. nitrous oxide inhalation; and 6. local anesthesia.

If you have a permit to administer parenteral sedation, you do not need a pediatric oral sedation permit. However, if you have only a nitrous oxide permit, you would need a permit to administer pediatric oral sedation.

In the future, pediatric and adult sedation should be coming under one permit.

Presently the American Association of Dental Examiners is working to create uniform national clinical examinations for dentists and dental hygienists. It is hoped that these uniform examinations can be ready for the individual regional and state testing agencies to utilize in the near future. This will go a long way toward states recognizing examinations from other states and will provide more mobility for all dentists and dental hygienists.

There has been a controversy on the national level to simply do away with clinical licensing examinations, especially on live patients. The Louisiana State Board of Dentistry has gone on record supporting its philosophy that third party objective examinations must be continued in order to evaluate one's fitness to obtain a license to practice dentistry or dental hygiene. Furthermore, the board is of the strong opinion that live patients must be utilized in certain portions of the examination. The board does utilize typodonts for some parts of the examination, but there simply is no true replacement for a live patient.

You have probably noticed that we did not send out new Dental Practice Act

booklets this year. The reason is simple. The board had no legislation this year and, practicing fiscal responsibility, decided not to spend the money on printing and mailing new Dental Practice Act booklets. Should the board pass any legislation next year, new booklets will be sent to you.

Dr. Michael J. Montalbano from Baton Rouge will be retiring after serving two terms on the Louisiana State Board of Dentistry. Dr. Montalbano will be sorely missed. He has been a true advocate for dentistry and dental hygiene throughout his career. Dr. Montalbano has been on the cutting edge on many issues and truly served the state of Louisiana admirably.

Dr. Aubrey Baudean of Marrero has left the board after serving eight years and he is now serving on the aviation board. Dr. Baudean has always lived to serve God and country. He, too, will be missed.

Dr. Ronald Marks of Alexandria served a full ten years on the board and is now retired due to term limits. Dr. Marks was the driving force on all issues related to anesthesia while here. His hard work and dedication will also be missed.

The board welcomes five new members recently appointed by Governor Blanco. Those members are Dr. H. O. Blackwood of Shreveport, Dr. Richard Curry of Monroe, Dr. Pamela Brown Daniel of Baton Rouge, Dr. Louis Joseph of Alexandria, and Dr. Sam S. Vinci of St. Francisville.

With kindest regards I am

Yours truly,

C. Barry Ogden
Executive Director

2005 BOARD MEETING DATES

February 12, 2005

May 21, 2005

August 20, 2005

December 3, 2005

CONGRATULATIONS 2004 DENTAL LICENSEES

LICENSED BY CLINICAL LICENSING EXAMINATION

Dr. Kellie S. Axelrad
Dr. Gerald A. Baudin, II
Dr. Mark E. Beavers
Dr. Edwin L. Bercier, IV
Dr. Richard D. Bertetti
Dr. Todd S. Brasuell
Dr. Andrew G. Briese
Dr. Stuart M. Brown
Dr. Thuy-Anh K. Bui
Dr. Lauren E. Burger
Dr. Linda T. Cao
Dr. Carl W. Churchman, Jr.
Dr. Jared R. Cottam
Dr. Charles C. Couvillon
Dr. Matthew C. Dart

Dr. Clint P. Dutil
Dr. Kimberly M. Easley
Dr. Thomas L. Eddleman
Dr. Chad C. Fulmer
Dr. Sean P. Gaffney
Dr. Steven M. Gaudet, Jr.
Dr. Leah A. Gauthier
Dr. Eugene R. Graff, Jr.
Dr. Joshua R. Guidry
Dr. Sara R. Guidry
Dr. Daniel B. Harris
Dr. Eric L. Hyde
Dr. Olga Isaeva
Dr. Angela R. James
Dr. Monika Kumar

Dr. Tyler P. Lasseigne
Dr. Matthew D. Litz
Dr. Virginia V. Locke
Dr. Eric M. Macaluso
Dr. Heather A. Maupin
Dr. Jared A. Nass
Dr. John T. Nguyen
Dr. Cynthia L. Norris
Dr. Daniel J. Paige
Dr. Corey J. Porche
Dr. Kristopher A. Portacci
Dr. Danielle C. Richard
Dr. Ana M. Saenz
Dr. Richard E. Scipione
Dr. Paul A. Smith

Dr. Karen M. Strickland
Dr. Maria Thomas
Dr. Staci R. Tolbert
Dr. Stephen J. Tomaszewski
Dr. Hoang Van Trung
Dr. Thanh N. Truong
Dr. Jill A. Truxillo
Dr. Jerald F. Turner
Dr. Christian M. Walker
Dr. Lesa R. Williams
Dr. Willie G. Williams
Dr. Jill C. Zerangue

CONGRATULATIONS 2004 DENTAL HYGIENE LICENSEES

LICENSED BY CLINICAL LICENSING EXAMINATION

Shannon D. Bickford, R.D.H.
Anna K. Braswell, R.D.H.
Susan G. Butler, R.D.H.
Rebecca A. Cascio, R.D.H.
Monique E. Chauvin, R.D.H.
Kimberly D. Cole, R.D.H.
Kelly M. Constantin, R.D.H.
Jacquelyn Cormier, R.D.H.
Carrie D. Corrao, R.D.H.
Cheryl G. Cottrell, R.D.H.
Jill M. Courville, R.D.H.
Hallie E. Crockett, R.D.H.
Kimberly D. Crump, R.D.H.
Hoa T. Dao, R.D.H.
Rachel M. Dubois, R.D.H.
Jacqueline L. Dederich, R.D.H.
Laura D. Ebarb, R.D.H.
Patti B. Ezell, R.D.H.

Amy J. Francis, R.D.H.
Amber R. Frederick, R.D.H.
Brigitte M. Frost, R.D.H.
Angela J. Gatten, R.D.H.
Danielle M. Gauthier, R.D.H.
Amie B. Godeaux, R.D.H.
Brandi L. Hall, R.D.H.
Maryland M. Harley, R.D.H.
Jennifer J. Harris, R.D.H.
Jennifer K. Hartline, R.D.H.
Lisa A. Holder, R.D.H.
Jordan R. Hufstutter, R.D.H.
Kimberly D. Hurst, R.D.H.
Lisa C. Johnson, R.D.H.
Britni L. Leblanc, R.D.H.
Yvonne M. LeBourgeois, R.D.H.
Michelle A. Marler, R.D.H.
Renee M. Montz, R.D.H.

Erin E. Moorish, R.D.H.
Emily R. Newton, R.D.H.
Anh H. Nguyen, R.D.H.
Kim T. Nguyen, R.D.H.
Carly E. Nicholson, R.D.H.
Laura E. Ockmand, R.D.H.
Julie C. Ohler, R.D.H.
Leslie R. Paille, R.D.H.
Casey L. Person, R.D.H.
Jennifer L. Poole, R.D.H.
Trameika K. Porter, R.D.H.
Dristy L. Price, R.D.H.
Jamie L. Richey, R.D.H.
Beverly A. Riley, R.D.H.
Abby Lynn M. Rodrigue, R.D.H.
Lacey R. Romero, R.D.H.
Kellie M. Schmidt, R.D.H.
Heather D. Stevens, R.D.H.

Ashley N. Stockwell, R.D.H.
Lauren E. St. Pierre, R.D.H.
Amber S. Suggs, R.D.H.
Cathy N. Tra, R.D.H.
Lisa M. Tran, R.D.H.
Tuyet M. Tran, R.D.H.
Betsy J. Turbeville, R.D.H.
Jennifer S. Uhl, R.D.H.
Theresa A. Versowsky, R.D.H.
Jennifer L. Vice, R.D.H.
Brigitte B. Walker, R.D.H.
Ashley N. Watkins, R.D.H.
Stephanie S. Weil, R.D.H.
Julie E. Weir, R.D.H.
Staci M. Whitney, R.D.H.
Melissa A. Williams, R.D.H.
Amanda R. Woods, R.D.H.

CONGRATULATIONS TO THE FOLLOWING LICENSEES

LICENSED BY CREDENTIALS IN 2003-2004

DENTISTS

Dr. Tiffany L. Buller-Schussler
Dr. Dongsoo Kim
Dr. Teryl Petropolous
Dr. Larry Buntyn, Jr.
Dr. Matthew Hearn
Dr. Alberico Sessa
Dr. William Steines

Jessica Schneider, R.D.H.
Janis S. Bennett, R.D.H.
Cynthia Allgaier, R.D.H.
Marsha Clapper, R.D.H.
Erin D. Brewer, R.D.H.
Deirdre W. Dapp, R.D.H.

HYGIENISTS

Angela Y. Davis, R.D.H.
Amy B. Ferguson, R.D.H.
Nicole F. Kiriazis, R.D.H.
Sherry Sue Smith George, R.D.H.
Vicki Vanderburg, R.D.H.
Shannon L. Gafner, R.D.H.

Caroline S. Jordan, R.D.H.
Karen L. Migacz, R.D.H.
Jillian A. Miller, R.D.H.
Kathy Wilson, R.D.H.

IMPORTANT INFORMATION REGARDING CONTINUING EDUCATION!

Proper documentation evidencing your completion of continuing education is necessary if you are audited this year. If you send inadequate documentation, it will be returned to you and will cause a delay in processing the renewal of your license. Please save yourself the time and aggravation by sending in the proper documentation the first time. If you cannot document the required number of hours, you may incur a continuing education fine.

If you are unable to complete your continuing education requirements under Rules 1611 for dentists or 1613 for dental hygienists, for whatever reason, it is necessary for you to advise the board of the problem which kept you from fulfilling your requirements prior to renewing your Louisiana license. The board will not grant extensions to licensees who have not provided this information before the renewal.

ATTENTION PLEASE NOTE:

In the August 2004 "Summer Update", you were notified of the rules which will become effective October 20, 2004. Special attention should be paid to the fact that continuing education requirements are still mandatory of all licensees, the only changes are in Rules 1611 and 1615 (G) which deletes "credit will not be given for speeches at meals, such as lunches or banquets".

NUTRITION

At the December 6, 1997 Annual meeting of the Board, the Louisiana State Board of Dentistry evaluated continuing education courses relating to nutrition and determined that said courses are not to be considered clinical as they relate to obtaining continuing education requirements.

FREQUENTLY ASKED QUESTIONS

1) How many hours of continuing education am I responsible for?

If you are a dentist, you are responsible for forty (40) hours of continuing education within the two years for which your license is current. Half of these hours must be clinical.

If you are a hygienist, you are responsible for twenty-four (24) hours of continuing education within the two years for which your license is current. Half of these hours must be clinical.

2) What is considered clinical continuing education?

Personally attended courses pertaining to the actual delivery of dental services to the patient.

3) Are video tapes, journals, and online courses considered clinical?

NO, these are always considered NON-CLINICAL!!!!!!

4) Can I carry hours forward past the two years for which I have renewed?

NO. The hours can only be acquired within the two years in which your license is renewed.

5) Do I send originals of my continuing education documentation?

NO. Always send a copy of all documentation evidencing completion of courses which you have listed on your renewal application. If you do not provide the correct documentation, your application will not be processed but will be returned to you for correction. All copies of continuing education documentation are retained in your personal board file.

Please make sure that your documentation contains all required information such as date of the course, title of the course, hours granted and the sponsor of the course. Please refer to § 1615 for approved continuing education providers.

6) Does cardiopulmonary resuscitation and First Aid courses count toward my continuing education requirement?

Cardiopulmonary resuscitation counts for three hours of non-clinical continuing education hours. First aid courses do not count toward the continuing education requirement.

7) Should I send documentation of completed continuing education hours to the Board office along with my renewal even if I am not randomly selected for a continuing education audit?

NO. This creates unnecessary work for you and for the Board staff.

8) Do I need to apply for a new anesthesia office permit if I move to a new office?

YES. All locations in which nitrous oxide inhalation, parenteral sedation, or general anesthesia is performed must have an office permit for that level of anesthesia which is being used. If you move to a new office, your permit from the old office does not transfer. Please contact the Board office for an anesthesia application.

9) How do I renew my anesthesia permit(s)?

At this time, your anesthesia permits renew automatically upon your license renewal. There is no separate fee.

10) Do I need to post my original license(s) in my office?

YES. All Louisiana licensees holding either a dental or dental hygiene license shall display their license in full and open view for all patients to observe along with all current renewal permits of said license.

All certificates or permits authorizing the administration of anesthesia, analgesia or sedation shall also be displayed in full and open view in close proximity to those licenses and renewal certificates required to be kept in open and full view for the public to observe.

When licensees provide dental services in more than one facility, a copy of said licenses and/or certificates shall suffice in place of the original and said copy shall be displayed in full and open view for all patients to see.

If you have lost or misplaced your original dental/dental hygiene license, please contact the Board for an affidavit of lost license. There is \$50.00 fee for duplicate original licenses. There is also a \$50.00 fee for duplicate renewal certificates or permits.

11) Why is the renewal fee so much?

The renewal fee is for two years.

12) How long is my renewal license good for?

All renewals are biennial (2 Years).

13) What is the deadline for my renewal application?

This year the deadline is December 31, 2004.

14) Can I place my license on semi-retired or inactive status?

NO. The Board only has an active status. If you voluntarily surrender your license due to retirement, your license no longer exists.

15) Does the Louisiana State Board of Dentistry regulate or certify dental assistants?

NO. The Board does not regulate dental assistants. We do a certificate confirmation for the Expanded Duty Dental Assistants only after he or she has submitted proof of the EDDA course, a high school or equivalency diploma, radiology course, current CPR card, and the \$25.00 application fee.



CHECK This Out! RENEWAL FEES

Active Biennial Dental License (2005-2006)	\$400.00
Active Biennial Hygiene License (2005-2006)	\$150.00

Deadline to Renew December 31, 2004
Delinquent fee will be assessed to all renewals received after December 31, 2004.

ADVERTISING VIOLATIONS

(Continued)

\$500.00.

27. Drew B. Morvant, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).

Final disposition- Dr. Morvant entered into a consent decree wherein he paid a fine in the amount of \$500.00.

28. Ryan P. Perry, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).

Final disposition- Dr. Perry entered into a consent decree wherein he paid a fine in the amount of \$500.00.

29. Mitchell A. Pierce, Jr., D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).

Final disposition- Dr. Pierce entered into a consent decree wherein he paid a fine in the amount of \$500.00.

30. Barry L. Radell, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(4), thereby forming a violation of R.S. 37:776 (A)(24).

Final Disposition- Dr. Radell entered into a consent decree wherein he paid a fine in the amount of \$500.00.

31. Joseph E. Sorci, D.D.S.

Violation- Advertisement in violation of Rule 301 (K) thereby forming a violation of R.S. 37:776 (A)(24).

Final disposition- Dr. Sorci entered into a consent decree wherein he paid a fine in the amount of \$500.00.

32. Kenneth O. Starling, D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).

Final disposition- Dr. Starling entered into a consent decree wherein he paid a fine in the amount of \$500.00.

33. Kent A. Stasney, D.D.S.

Violation- Advertisement in violation of Rule 301 (E), thereby forming a violation of R.S. 37:776 (A)(24).

Final disposition- Dr. Stasney entered into a consent decree wherein he paid a fine in the amount of \$500.00.

34. Anthony Trentacoste, Jr., D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).

Final disposition- Dr. Trentacoste entered into a consent decree wherein he paid a fine in the amount of \$500.00.

35. James L. Weeks, D.D.S.

Violation- Advertisement in violation of Rule 301 (K), thereby forming a violation of R.S. 37:776 (A)(24).

Final Disposition- Dr. Weeks entered into a consent decree wherein he paid a fine in the amount of \$500.00.

36. William P. Welch, Jr., D.D.S.

Violation- Advertisement in violation of Rule 301 (H)(3), thereby forming a violation of R.S. 37:776 (A)(24).

Final disposition- Dr. Welch entered into a consent decree wherein he paid a fine in the amount of \$500.00.

LOUISIANA STATE BOARD OF DENTISTRY

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Shreveport, Louisiana 71106

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West Monroe, Louisiana 71291

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Baton Rouge, Louisiana 70809

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437 W. College Street
Lake Charles, Louisiana 70605

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Denham Springs, Louisiana 70706

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250 Meadowcrest Street, Ste. 204
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Dr. Conrad P. McVea, Jr.
2016 Washington Street
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New Orleans, Louisiana 70114

Dr. C. Leonard Wise
P.O. Box 1910
Morgan City, Louisiana 70380

C. Barry Ogden, ESQ.
Executive Director

LOCAL ANESTHESIA PERMIT INFORMATION

The dental hygiene Local Anesthesia permit is not automatically issued upon completion of the local anesthesia course or completion of the dental hygiene program. Each dental hygienist is sent an application with their original license. The application must be completed and returned to the board office with a copy of their certificate showing satisfactory completion of the local anesthesia course. The LSU School of Dentistry and the

University of Louisiana at Monroe send the Board a list of persons completing the requirements through their respective dental hygiene programs. Those persons graduating from the dental hygiene program only need to complete the application to obtain a local anesthesia permit. If you need an application, please contact the board office. If you do not have a permit, you are not authorized to administer local anesthesia.

PEDIATRIC ORAL SEDATION PERMITS REQUIRED

The new pediatric oral sedation law went into effect August 15, 2003.

Under this law, licensees administering pediatric oral sedation (not including nitrous oxide) are required to apply for personal and office permits for every office where pediatric sedation will be used.

The application fee is \$50.00 for a personal permit and \$50.00 for each office permit.

To apply for a pediatric oral sedation permit, please send a letter along with payment as described above. Indicate your qualifications to administer oral conscious sedation on pediatric patients. Include any pertinent continuing education courses. If presently administering oral conscious sedation on children, indicate how long you have been doing this. The Board will schedule an inspection for your office where we will be checking for the following:

- A pulse oximeter—This monitors the pulse and oxygen content of blood. This is to ensure early detection of any problems while a patient is under anesthesia.
- Emergency drug kit
- A proper record keeping log—in addition to your required controlled substance log.
- A scale—accurate weight of a child is necessary to determine appropriate dose.

Please send your request as soon as possible since we anticipate many applications and inspections. We will inspect your office as soon as is possible. If you are currently using pediatric sedation, it is not necessary that you stop while your permit and inspection are pending.

Please mail your application and proper fees to the following address:

Louisiana State Board of Dentistry
One Canal Place
365 Canal St.
Suite 2680
New Orleans LA 70130

DRUG ENFORCEMENT ADMINISTRATION UPDATE

The Drug Enforcement Administration will be offering the following registration requests interactively on the Diversion Control Website (www.deadiversion.usdoj.gov):

Name Changes
Address Changes
Schedule Changes
Drug Code Changes
Duplicate Certificates
Order Forms (DEA Form 222)
DEA-224 New Application
DEA-106 Theft or Loss Report